

REVISED UDC Amendment to eliminate maximum 125% limit on accessory parking.

Currently, an Applicant may increase his/her required parking spaces by 10% as-of-right. If they seek more than the 10% of the required number of parking spaces, the Director may grant additional parking, with mitigation measures, up to a maximum 125% of the required number.

Currently, Section 6.2.7 of the UDC states: "No Site shall be permitted to provide more than 125% of the required parking in any circumstance." This excludes any variance consideration by the Board of Adjustment. This absolute limit has stymied re-use and redevelopment of vacant, in-fill retail stores and shopping centers.

On December 3rd, the Planning Commission unanimously recommended approval of a text amendment to grant more flexibility to the Director to approve additional parking. That amendment was brought to this Committee on December 17th and this Committee sought to increase the as-of-right additional parking to 25% of the requirement. At the December 20th Council meeting, staff agreed to present such a substitute amendment to this Committee for your consideration.

What you have before you is a substitute amendment to the UDC to replace the Section 6.2.7 Maximum 125% accessory parking limit with a provision that provides an option for Applicants to provide parking in excess of the 125%. It also allows up to 25% additional parking as-of-right.

This revision would allow the Director to grant additional parking over the 25% as-of-right amount, up to a 125% limit, provided the Applicant first exhaust all options for parking credits or shared parking AND incorporate 2 or more of the mitigating features such as (1) 15% additional landscape screening of the parking lot; (2) additional open space equal to the square footage of the additional parking spaces; (3) 5% additional landscaping within the parking lot; or (4) porous surface of the additional parking spaces.

This revision would also allow the Director to grant additional parking beyond the 125% limit if the additional parking spaces are warranted by a parking demand study approved by the City Engineer. If the parking study demonstrates the need for parking greater than 125% of the standard requirement, the Applicant must provide 15% additional landscape buffering of the parking lot; and one more mitigating design feature such as additional open space equal to the square footage of the additional parking spaces; 5% additional landscaping within the parking lot; or porous surface of the additional parking spaces.

Staff has evaluated this substitute amendment and finds that it satisfies the 3 criteria of the UDC for granting text amendments.

Approved as to
form only:



Date: 1/8/19

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE PURSUANT TO SECTIONS 1.1.6 AND 2.4.1 OF THE CHEYENNE UNIFIED DEVELOPMENT CODE (UDC), AMENDING SECTION 6.2.7 OF THE UDC TO REMOVE THE MAXIMUM PARKING LIMITATION AND TO ALLOW APPLICANTS TO REQUEST THE DIRECTOR TO APPROVE ADDITIONAL PARKING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the UDC.

Section 2. That the intent of this text amendment is to remove the UDC text specifying a 125 percent maximum parking allowed per site under any circumstance and to allow Applicants to request the Director of Planning and Development to grant additional parking without exhausting all options for Parking Credits or Shared Parking, if applicable, conditioned on the Applicant demonstrating, via a parking study, the need for additional parking and the Applicant providing two or more of the mitigation measures of Section 6.2.7, subsections a through d.

Section 3. That the intent of this text amendment is to facilitate the redevelopment of infill properties or to accommodate the special parking needs of new development by allowing Applicants to seek and justify parking in excess of the Section 6.2.4 requirements, provided that the Applicant incorporates two or more of the mitigating design features stated in Section 6.2.7.a through d.

Section 4. That this text amendment is not regarding a specific parcel or a change in boundary due to a specific development proposal, changed circumstances for any specific property or its surrounding area, or changed public policy with respect to long-range plans.

Section 5. That sub-section 6.2.7 Maximum Parking is amended to read as follows [text additions are noted by underscoring text and deletions are noted by strike-through text]:

6.2.7 Maximum Parking

~~No use shall provide more than 10% percent over the minimum required parking in Table 6-2 without exhausting all options for Parking Credits or Shared Parking, and shall only be permitted to exceed 10% above the minimum requirements by incorporating two or more of the following mitigating design features. No site shall be permitted to provide more than 125% of the required parking in any circumstance.~~

- ~~a. The surface of lesser used or overflow parking areas shall be a porous surface that allows all stormwater to be infiltrated below the surface, subject to the approval by the City Engineer. Any porous surface used shall demonstrate that it has at least the same or better performance~~

~~standard as the required standard parking surface and does not present substantial maintenance issues.~~

- ~~b. The site shall be required to provide additional area, equal to or greater than the area of parking in excess of the maximum, as public or common open space. This additional open space shall be subject to the Type, Design Standards and Location Criteria of the Civic Open Space System in Section 4.4 of the Subdivision Standards, and shall be in addition the minimum open space requirements for the site. Alternatively, the excess area may be designed as Civic Open Space, that has the capability of accommodating overflow parking at limited peak times, such as a plaza surface or stabilized green surface which can accommodate cars on limited occasions.~~
- ~~e. Landscape material requirements for the site shall be increased by 15% percent above the minimum amount required in the Landscape Design standards of Section 6.3 and shall be allocated to provide enhanced buffering of all on-site parking.~~
- ~~d. Internal landscape areas for the on-site parking shall be increased by an additional 5% percent above the minimum percentage requirements of Section 6.2.8.~~

a. No use shall provide more than 25% percent over the minimum required parking in Table 6-2 without exhausting all options for Parking Credits or Shared Parking, and shall only be permitted by the Director to exceed 25% above the minimum requirements, up to 125% of the minimum parking requirement, by incorporating two or more of the mitigating design features of subsections 6.2.7.c. below.

b. The Director may grant an exception to the maximum parking requirements of this section, provided the Applicant submits a parking study prepared by a Wyoming licensed engineer justifying the need for such additional parking. Such parking study shall be reviewed and approved by the City Engineer. The following criteria shall be reviewed in evaluating the parking study:

1. projected employees,
2. employee density,
3. building and/or occupancy capacity,
4. projected peak attendees/customers,
5. availability of parking on adjacent streets,
6. parking turnover rate, and
7. average peak period parking demand.

In conjunction with any exception granted under this subsection, the Applicant shall incorporate mitigating design feature 6.2.7.c.1 and one additional mitigating design feature of subsection 6.2.7.c.

c. Mitigating Design Features

1. Landscape material requirements for the site shall be increased by 15% percent above the minimum amount required in the Landscape Design standards of Section 6.3 and shall be allocated to provide enhanced buffering of all on-site parking.
2. The site shall be required to provide additional area, equal to or greater than the area of parking in excess of the maximum, as public or common open space. This additional open space shall be subject to the Type, Design Standards and Location Criteria of the Civic Open Space System in Section 4.4 of the Subdivision

Standards, and shall be in addition the minimum open space requirements for the site. Alternatively, the excess area may be designed as Civic Open Space, that has the capability of accommodating overflow parking at limited peak times, such as a plaza surface or stabilized green surface which can accommodate cars on limited occasions.

3. The surface of lesser used or overflow parking areas shall be a porous surface that allows all stormwater to be infiltrated below the surface, subject to the approval by the City Engineer. Any porous surface used shall demonstrate that it has at least the same or better performance standard as the required standard parking surface and does not present substantial maintenance issues.
4. Internal landscape areas for the on-site parking shall be increased by an additional 5% percent above the minimum percentage requirements of Section 6.2.8.

Section 6. That the aforementioned Section of the UDC is hereby amended as set out within this ordinance and sections currently existing within the UDC not set out within this ordinance remain unchanged.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____ Wyoming Tribune Eagle



A COMMUNITY OF CHOICE

Planning & Development Department

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MEMO

TO: Cheyenne Governing Body

FROM: Charles W. Bloom, AICP, Planning & Development Director

SUBJECT: Assessment of Oversized Parking Lots regarding Proposed UDC Section 6.2.7
Maximum Parking Limit Amendment

DATE: January 8, 2019

This memo pertains to the proposed UDC text amendment to amend Section 6.2.7 of the Unified Development Code, which governs maximum parking for development projects.

Currently, the UDC states that "No site shall be permitted to provide more than 125% of the required parking in any circumstance," a limit which is intended to avoid a "sea of parking" facing public streets.

As stated in Planner Montana's staff report to Planning Commission, City Council, and the Public Services Committee (all earlier this month), this proposed amendment seeks to "facilitate development of infill properties that may have been designed and built with large amounts of parking". Examples of this type of redevelopment are the re-use of former department stores and shopping centers for churches, offices or a mix of office and retail uses."

The following properties have emerged as those likely to be accommodated by this proposed amendment to the UDC's maximum parking policy:

<u>Property</u>	<u>Change of Use</u>	<u>Parking Required</u>	<u>Parking Sought/ Provided</u>	<u>Percent of Requirement</u>
Former Sutherlands	Retail to office	193	364	189% if requirement 88.6
Department store On Carlson	Element church; mixed uses	95	504	531% of requirement 430
Former Montgomery Ward department store on E. Pershing	Retail, restaurant, Gold's Gym, cinema; govt. office	854	833	97.5% of requirement
Former Safeway/Cole's shopping center	Retail	477	535	12% more than required 12%
Former Hobby Lobby shopping center on E. Lincolnway	Retail, mixed use	1,056	1,605	152% of requirement 51%
Former Sears at Frontier Mall	Retail to mixed use	333	999	300% 200% additional
Former Kmart on Del Range	Retail to retail	486	530	10% more than required 9%

Former K-Mart/Sutherland's – The Wyoming Department of Workforce Services (WDWS) seeks to reutilize this 6.63-acre site, home to a 76,749 sq ft building constructed in 1981. The last site plan approved was for a K-Mart and contained 337 spaces. (Current UDC requirements would mandate 307 spaces for general retail of this size.) The WDWS has proposed 364 spaces, which they claim is necessary to accommodate the estimated 250 employees on-site plus projected visitors to the new office. This represents an increase of 8% over the 337 figure (which has remained as a legal-nonconforming site condition). The proposed use of general office space triggers 193 required parking spaces, less than would be required for general retail space and just 53% of the 364 spaces proposed. **WDWS therefore is requesting 189% of required parking spaces, a level that is impermissible given current UDC language.**

Element Church (former Department Store) – Similar in size to the old Sutherland's, Element Church currently occupies a 75,784 sq ft structure, constructed in 1969. The lot on which the Church sits occupies both the 500 and 600 blocks of East Carlson Street, measures approximately 600' x 600', and is roughly 8 acres in size. It epitomizes a structure drowning in a sea of parking, as all building facades are no less than 125' from the nearest respective property lines. Indeed, the front building façade is some 250' from East Carlson Street, with a large parking lot lying between the street and building, screening the building architecture and design from view. The 1987 site plan for this property (what was then a P.U.D.) indicates that although 392 spaces were required, 504 were included (a 29% overage). The quantity and orientation of

parking spaces have changed in the decades since, but not in a way that has fundamentally altered the appearance of the site. Element Church went through the site plan process in 2016 for re-striping and re-paving its parking lot, the plans for which show the presence of 489 spaces. Current UDC parking requirements for places of assembly require 1 parking space per every 5 seats at maximum capacity. The building is also occupied by a major child care center and a utility company. The required parking for the utility service would be about 15 spaces and the required parking for the major child care center would be about 20 spaces. The minimum parking required for the approximately 57,000 sq ft of the building used as the Church cannot be determined at this time without knowing the maximum number of seats in the sanctuary. If the sanctuary held 300 seats, the parking requirement for the church would be 60 spaces. **The 504 provided spaces would exceed the 95 required parking spaces for the three uses of the property by 409 spaces and represents the presence of 531% of the required number of parking spaces.**

However, due to the popularity of weekend Church services and activities, the site's **parking demand** is estimated at the 504 spaces provided. The child care and utility service operators share the site's parking during weekdays, which are "off-peak" hours for the Church.

Former Montgomery Ward site on E. Pershing (Golds Gym, Wyoming Workforce, Capitol Cinema Site) – These two adjacent lots occupy a total of 16 acres along the 1500 and 1600 block of East Pershing Blvd. The western building, built in 1964, is nearly 82,000 sq ft and houses WDWS (and possibly other businesses). The eastern building, built in 1963, is 76,000 sq ft and contains Gold's Gym and the recently opened Office Bar & Grill. Directly north of the eastern building is the Capitol Cinema, the entrance to which is on the building's western façade and faces the rear parking lot of the western building. The movie theater is 33,700 sq ft and was built in 2004.

A 2003 site plan for the entirety of the site (both lots) included 833 spaces spread across 30 "parking blocks" exhibiting both 90- and 60-degree parking stall angles. Of these, 280 spaces lie within the eastern lot (that which contains the Gold's Gym and Capitol Cinema buildings). All these spaces, furthermore, are situated in front of the Gold's gym building, and thus serve to drastically reduce any aesthetic value offered by the building (which incurs a 300' setback from East Pershing Blvd). The other 553 spaces surround the western building on its remaining three sides. Of these, approximately 267 lie in front of the building, which at its closest point to East Pershing Blvd. still incurs a 220' setback.

General office space greater than 50,000 sq ft requires 1 parking space per 400 sq ft. This equates to 205 spaces for the western building. That lot contains 553 spaces, equal to 270% of the required number of parking spaces.

Gold's Gym currently occupies 26,330 sq ft and is expanding into the adjacent 9,360 sq ft parcel. The resulting total of 35,690 sq ft of space mandates 143 parking spaces.

The Office Bar & Grill occupies 8,146 sq ft of the eastern building. Restaurants larger than 5,000 sq ft require 20 spaces per 1,000 sq ft. This equates to 163 required parking spaces. However, this figure seems abnormally high given the perceived size of the restaurant.

The remaining 25,707 sq ft of space in the eastern building is occupied by a coffee shop and supplements store. (Other businesses may also occupy parts of this space.) Classifying this all as general retail, this requires 103 parking spaces.

Places of assembly, such as movie theaters, require 1 space per 5 seats at maximum capacity. The Capitol Cinema contains 12 theaters, each of which seats approximately 100 people. With a maximum capacity of 1200 persons, that translates to 240 required spaces.

Collectively, the establishments on the eastern lot (Gold's Gym and Capitol Cinema buildings) would require 649 parking spaces. This figure is 232% that of the provided number of 280.

Taken together, both lots require 854 spaces. Astonishingly, the existing 833 spots satisfy 97.5% of this requirement.

Cole Shopping Center (former Safeway) – This 7.4-acre complex is located adjacent to the southeast portion of the Converse/E. Pershing/E. 19th Street roundabout. It contains 6 buildings that line the eastern, southern, and western portions of the perimeter. These building were all constructed 1954 and 1976 and total 108,757 sq ft. The largest of the structures is the former Safeway at 41,392 sq ft. (A redevelopment of this shopping center was proposed around 2011, and site plans, drainage reports, and a traffic impact study were submitted. However, those plans appear to have been put on hold in 2014 and the center closed sometime in 2016.)

A site plan prepared January 5, 1978 indicates 535 parking spaces present in the lot. Current UDC parking requirements of 4 or 5 spaces per 1,000 sq ft of retail space (depending on size) would require 477 spaces in this lot. Thus, **the Cole Shopping Center provides approximately 89% of the required parking spaces based on use and square footage.**

Former Hobby Lobby at E Lincolnway (future Big Lots) – This is a 60,000 sq ft building located in the shopping center at the southeast corner of Lincolnway and Ridge Road. (A 1980 plat describes the three easternmost lots, which total 25 acres, as the Cheyenne Plaza Shopping Center. A 2003 plat describes the 4 other lots to the west, totaling 7.4 acres, as the Lincolnway Shopping Center.) The building was constructed in 1978, and Hobby Lobby relocated to its current Dell Range location on June 11, 2018. A May 30, 2018 article stated that Big Lots would be re-locating from its storefront at the eastern edge of the shopping center. (The building in which Big Lots is located totals 40,540 sq ft and includes several other tenants, indicating the new store would be significantly larger.)

A 1980 site plan for the Cheyenne Plaza Shopping Center indicated that 1,765 parking spaces would be provided (4.3% more than the 1,692 required), and a 1984 site plan gives almost the

same number. Both plans state that 66% of the 25-acre parcel would be covered by parking and driveways, with an additional 22% covered by the buildings. (A 1979 plan that was never implemented contained 1,881 spaces.) These plans all incorporate the present Lincolnway Shopping center, before it was separately platted. The area that became the Lincolnway Shopping Center was shown to contain 499 of these spaces. This indicates that the Cheyenne Plaza Shopping Center can be expected to presently contain 1,266 spaces.

A site plan produced for the Hobby Lobby structure around the time of the 2003 replat could not be located. However, A 1979 site plan for the area that presently constitutes Lincolnway Shopping Center provided 367 parking spaces (330 were required). Aerial imagery from the Laramie County MapServer indicates that approximately 276 (75%) of these spots remain. A 2003 plat for Family Dollar contains 38 spaces, and a 2006 plat for Aaron's contains 25. (Both businesses are within the area designated as the Lincolnway Shopping Center.) Therefore, the total amount of parking attributable to the Lincolnway Shopping Center is approximately 339 spaces.

In total, the Cheyenne Plaza and Lincolnway Shopping Centers appear to contain 1,605 parking spaces. These parcels contain 264,000 sq ft of space, and thus would require in the neighborhood of 1,056 parking spaces. **Therefore, these properties currently provide approximately 152% of the required number of parking spaces, well beyond present UDC allowances.**

Former Sears at Frontier Mall – Constructed in 1980, this building is 82,732 sq ft in size. The building constitutes Lot 4 of the Frontier Mall 3rd filing (platted in August 8, 2000), but the small, vacant, adjacent parcels that are Lots 3 and 5 can effectively be considered part of the building as well. An August 1978 preliminary site plan for the Frontier Mall includes 2,664 parking spaces. One from October 1978 indicates 2,823 (2,763 required). An approved landscape plan for the site from September 1979 provides 2,908 spaces (2,889 required). All plans indicate that parking spaces are to be provided at the rate of 5.5 per 1,000 sq ft. of leasable area. The 1979 approved landscape plan indicates 525,370 sq ft of this type, plus 55,529 sq ft of "malls" and 12,245 of corridors, offices, and maintenance areas.

The UDC requires 4.5 spaces per 1,000 sq ft for retail establishments between 400,000 and 600,000 sq ft. That equates to 2,365 spaces for the 525,000 sq ft of the original Frontier Mall. Portions of the Frontier Mall 3rd filing were incorporated into the 4th filing (platted in 2016), which led to the construction of the Chipotle and Olive Garden restaurants that lie along Dell Range. While some 100 parking spaces combined were allocated for those establishments, the construction would have still resulted in a net loss of spaces for the entire Frontier Mall. (The same would have been the case for the Chili's, a freestanding building in the southwestern portion of the parking lot which was constructed in 1994.) Nevertheless, the thousands of spaces that surround the original structure still epitomize the "sea of parking" that the current code seeks to avoid.

Because the former Sears building take up the entire lot on which it was constructed, no parking spaces are specifically dedicated toward the structure. **The size of the building would require 333 spaces based on UDC requirements. In actuality, the number of parking spaces that are de facto dedicated to this building (understood as being closer to this portion of the mall than any other) number somewhere closer to three times that figure. Thus, the former Sears is deemed "overparked".** (Development staff met with the owner of this property and a prospective developer in November 2018 to discuss an intended retrofit and partitioning of the building, but follow-up discussions have occurred since.)

Former Dell Range Kmart (adjoining half of new Hobby Lobby) – Constructed in 1991, this 104,625 sq ft structure sits on an 8.33-acre parcel on the north side Dell Range (just 3/5 mile east of the abovementioned Sears). Kmart occupied the entire building until closing in early 2017, and Hobby Lobby opened its doors on June 11, 2018. A press release on the company's website states that the store is 60,000 sq ft, or roughly 57% of the building. (The sketch of the building on MapServer does not indicate any partitioning of the structure into smaller units.) This structure was part of the Terre Fini 2nd filing (platted in 1992). A preliminary site plan from 1990 provided 510 parking spaces for that building as well as a 17,000 sq ft building that adjoins it to the east (collectively Lots 1 and 3). At 121,733 sq ft combined, these two parcels would require 486 parking spaces based on UDC requirements. The IBMC building was constructed in 1999, and the lot on which it sits appears to contain the 70 parking spaces originally provided in the 1990 site plan. An additional 20 spaces, including 4 ADA spaces, now exist on the area directly east of the building, like installed during the 1999 construction.

The 1990 site plan left Lots 4 and 5 of the Terre Fini 2nd filing as "unimproved parcels." These lots are each 1.11 acres in size and occupy the southwestern and southeastern corners of the platted area. A 3,061 sq ft Wendy's was constructed in 1995 (Lot 5), followed by a 5,698 sq ft First Interstate Bank in 2002 (Lot 4). Dedicated parking spaces, roughly 30 for each business, line the sides and rears of each parcel. The facades closest to Dell Range for both buildings are separated from the road by both landscape buffers and drive-thru aisles, but both buildings are setback just 75' or so from the right of way. The front façade of the former Kmart/new Hobby Lobby building is setback approximately 460' from Dell Range, or 8.7% of one mile.

****Of Note:** Until October of this year, the smaller building on Lot 3 housed the Institute of Business & Medical Careers, which has three remaining campuses in Northern Colorado. Cheyenne Vision Clinic, currently located at 1200 East Pershing, announced its intention to inhabit the space, and was recently granted an administrative site plan waiver by the Planning Director. The business expects to move into this space shortly after the new year.

Texas Roadhouse – The owners of this restaurant are in the midst of purchasing adjacent lots to construct an auxiliary parking lot. The 2-acre lot on which this 7,435 sq. ft restaurant sits currently contains 143 parking spaces. This is less than the 164 that would be required by current UDC standards. (Restaurants larger than 5,000 sq. ft require 20 spaces per 1,000 sq. ft PLUS 1 space for each 2 employees at maximum employment on a single shift.) The proposed auxiliary

lot and modification of the existing lot would result in a net gain of 31 spaces, for a new total of 174. **This new figure is just 6.1% larger than the required amount, and thus would be permissible via current UDC language. During a pre-application meeting for this project in September, company representatives expressed a desire for a total of 233 spaces, 42% more than the required number.**